

Data Processing Addendum (DPA)

Data protection terms for client personal data processed by BVTech

Document ID: BVT-LGL-011

Version: 1.0

Issued: July 02, 2026

Effective Date: _____

Parties and Effective Date

This Data Processing Addendum ("Agreement") is entered into as of the Effective Date by and between BVTech LLC, a Texas limited liability company ("Provider" or "BVTech"), with its principal office at 1902 Kirby Rd, El Campo, TX 77437, and the client identified on the signature page ("Client"). Provider and Client are each a "party" and together the "parties."

Client Legal Name: _____

Client Address: _____

Client Primary Contact / Email: _____

Roles and Scope

In delivering services, Provider processes personal data contained in Client systems on Client's behalf and documented instructions. Client is the controller (or a processor acting for its own customers); Provider is a processor/service provider. This DPA supplements the underlying services agreement.

Provider Obligations

- 1 Process personal data only to deliver the services and per Client's documented instructions, unless required by law (with notice where permitted).
- 2 Ensure personnel with access are bound by confidentiality obligations.
- 3 Implement appropriate technical and organizational measures aligned to the NIST Cybersecurity Framework, including access control, MFA, patching, logging, and encryption in transit.
- 4 Notify Client without undue delay, and in any event within seventy-two (72) hours of confirming, a personal data breach affecting Client personal data, with available details to support Client's notification obligations (including under Tex. Bus. & Com. Code § 521.053).
- 5 Assist Client, at Client's reasonable expense, with data subject requests and legally required assessments.
- 6 Upon termination, return or delete Client personal data per the underlying agreement, subject to backup cycles and legal holds.

Subprocessors

Client authorizes Provider's use of subprocessors for hosting, RMM, backup, email security, and similar service functions. A current list is available on request. Provider will bind subprocessors to data protection terms no less protective than this DPA, remains responsible for their performance, and will give Client notice of material subprocessor changes with an opportunity to object on reasonable data-protection grounds.

Audits

No more than once annually (and after a confirmed breach), Client may request Provider's security documentation and written responses to a reasonable security questionnaire. On-site audits require thirty (30) days' notice, are at Client's expense, must not disturb other clients' data, and may be satisfied by third-party attestation reports where available.

IN WITNESS WHEREOF, the parties have executed this document as of the Effective Date.

BVTech LLC**Client**

Signature: _____

Signature: _____

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____